

Immediately after finding that Olson had leapt to his death, Lashbrook telephoned Gottlieb at his home and informed him of the incident.⁴⁹ Gottlieb called Ruwet and informed him of Olson's death at approximately 2:45 a.m.⁵⁰ Lashbrook then called the hotel desk and reported the incident to the operator there. Lashbrook called Abramson and informed him of the occurrence. Abramson told Lashbrook he "wanted to be kept out of the thing completely," but later changed his mind and agreed to assist Lashbrook.⁵¹

Shortly thereafter, uniformed police officers and some hotel employees came to Lashbrook's room. Lashbrook told the police he didn't know why Olson had committed suicide, but he did know that Olson "suffered from ulcers."⁵²

e. The Aftermath.—Following Dr. Olson's death, the CIA made a substantial effort to ensure that his family received death benefits, but did not notify the Olsons of the circumstances surrounding his demise. The Agency also made considerable efforts to prevent the death being connected with the CIA, and supplied complete cover for Lashbrook so that his association with the CIA would remain a secret.

After Dr. Olson's death the CIA conducted an internal investigation of the incident. As part of his responsibilities in this investigation, the General Counsel wrote the Inspector General, stating:

I'm not happy with what seems to be a very casual attitude on the part of TSS representatives to the way this experiment was conducted and the remarks that this is just one of the risks running with scientific experimentation. I do not eliminate the need for taking risks, but I do believe, especially when human health or life is at stake, that at least the prudent, reasonable measures which can be taken to minimize the risk must be taken and failure to do so was culpable negligence. The actions of the various individuals concerned after effects of the experiment on Dr. Olson became manifest also revealed the failure to observe normal and reasonable precautions.⁵³

As a result of the investigation DCI Allen Dulles sent a personal letter to the Chief of Technical Operations of the Technical Services Staff who had approved the experiment criticizing him for "poor judgment . . . in authorizing the use of this drug on such an unwitting basis and without proximate medical safeguards."⁵⁴ Dulles also sent a letter to Dr. Gottlieb, Chief of the Chemical Division of the Technical Services Staff, criticizing him for recommending the "unwitting application of the drug" in that the proposal "did not give sufficient emphasis for medical collaboration and for the proper consideration of the rights of the individual to whom it was being administered."⁵⁵

⁴⁹ CIA Field Office Report, 12/3/53, p. 3.

⁵⁰ Ruwet Memorandum, p. 11.

⁵¹ CIA Field Office Report, 12/3/53, p. 3.

⁵² *Ibid.*

⁵³ Memorandum from the General Counsel to the Inspector General, 1/4/54.

⁵⁴ Memorandum from DCI to Chief, Technical Operations, TSS, 2/12/54.

⁵⁵ Memorandum from DCI to Sidney Gottlieb, 2/12/54.

The letters were hand carried to the individuals to be read and returned. Although the letters were critical, a note from the Deputy Director of Central Intelligence to Mr. Helms instructed him to inform the individuals that: "These are not reprimands and no personnel file notation are being made."⁵⁶

Thus, although the Rockefeller Commission has characterized them as such, these notes were explicitly not reprimands. Nor did participation in the events which led to Dr. Olson's death have any apparent effect on the advancement within the CIA of the individuals involved.

3. The Surreptitious Administration of LSD to Unwitting Non-Volunteer Human Subjects by the CIA After the Death of Dr. Olson

The death of Dr. Olson could be viewed, as some argued at the time, as a tragic accident, one of the risks inherent in the testing of new substances. It might be argued that LSD was thought to be benign. After the death of Dr. Olson the dangers of the surreptitious administration of LSD were clear, yet the CIA continued or initiated⁵⁷ a project involving the surreptitious administration of LSD to non-volunteer human subjects. This program exposed numerous individuals in the United States to the risk of death or serious injury without their informed consent, without medical supervision, and without necessary follow-up to determine any long-term effects.

Prior to the Olson experiment, the Director of Central Intelligence had approved MKULTRA, a research program designed to develop a "capability in the covert use of biological and chemical agent materials." In the proposal describing MKULTRA Mr. Helms, then ADDP, wrote the Director that:

we intend to investigate the development of a chemical material which causes a reversible non-toxic aberrant mental state, the specific nature of which can be reasonably well predicted for each individual. This material could potentially aid in discrediting individuals, eliciting information, and implanting suggestions and other forms of mental control.⁵⁸

On February 12, 1954, the Director of the Central Intelligence Agency wrote TSS officials criticizing them for "poor judgment" in administering LSD on "an unwitting basis and without proximate medical safeguards" to Dr. Olson and for the lack of "proper consideration of the rights of the individual to whom it was being administered."⁵⁹ On the same day, the Inspector General reviewed a report on Subproject Number 3 of MKULTRA, in which the same TSS officers who had just received letters from the Director were quoted as stating that one of the purposes of Subproject Number 3 was to

⁵⁶ Note from DDCI to Richard Helms, 2/13/54.

⁵⁷ The 1963 IG Report, which described the project involving the surreptitious administration of LSD, placed the project beginning in 1955. Other CIA documents reveal that it was in existence as early as February 1954. The CIA has told the Committee that the project began in 1953 and that the experiment which led to Dr. Olson's death was part of the project.

⁵⁸ Memorandum from ADDP items to DCI Dulles, 4/3/53, tab A, p. 2.

⁵⁹ Memorandum from DCI to Sidney Gottlieb, 2/12/54; and memorandum from DCI to Chief of Operations, TSS, 2/12/54.

"observe the behavior of unwitting persons being questioned after having been given a drug."⁶⁰ There is no evidence that Subproject Number 3 was terminated even though these officers were unequivocally aware of the dangers of the surreptitious administration of LSD and the necessity of obtaining informed consent and providing medical safeguards. Subproject Number 3, in fact, used methods which showed even less concern than did the OLSON experiment for the safety and security of the participants. Yet the evidence indicates the project continued until 1963.⁶¹

In the project, the individual conducting the test might make initial contact with a prospective subject selected at random in a bar. He would then invite the person to a "safehouse" where the test drug was administered to the subject through drink or in food. CIA personnel might debrief the individual conducting the test, or observe the test by using a one-way mirror and tape recorder in an adjoining room.

Prior consent was obviously not obtained from any of the subjects. There was also, obviously, no medical prescreening. In addition, the tests were conducted by individuals who were not qualified scientific observers. There were no medical personnel on hand either to administer the drugs or to observe their effects, and no follow-up was conducted on the test subjects.

As the Inspector General noted in 1963:

A significant limitation on the effectiveness of such testing is the infeasibility of performing scientific observation of results. The [individuals conducting the test] are not qualified scientific observers. Their subjects are seldom accessible beyond the first hours of the test. The testing may be useful in perfecting delivery techniques, and in identifying surface characteristics of onset, reaction, attribution, and side-effect.⁶²

This was particularly troublesome as in a

number of instances, . . . the test subject has become ill for hours or days, including hospitalization in at least one case, and the agent could only follow up by guarded inquiry after the test subject's return to normal life. Possible sickness and attendant economic loss are inherent contingent effects of the testing.⁶³

Paradoxically, greater care seems to have been taken for the safety of foreign nationals against whom LSD was used abroad. In several cases medical examinations were performed prior to the use of LSD.⁶⁴

⁶⁰ Memorandum to Inspector General from Chief, Inspection and Review, on Subproject #3 of MKULTRA, 2/10/54.

⁶¹ IG Report on MKULTRA, 1963.

⁶² *Ibid.*, p. 12.

⁶³ *Ibid.* According to the IG's survey in 1963, physicians associated with MKULTRA could be made available in an emergency.

⁶⁴ The Technical Services Division which was responsible for the operational use of LSD abroad took the position that "no physical examination of the subject is required prior to administration of [LSD] by TSS trained personnel. A physi-

Moreover, the administration abroad was marked by constant observation made possible because the material was being used against prisoners of foreign intelligence or security organizations. Finally, during certain of the LSD interrogations abroad, local physicians were on call, though these physicians had had no experience with LSD and would not be told that hallucinogens had been administered.⁶⁵

The CIA's project involving the surreptitious administration of LSD to unwitting human subjects in the United States was finally halted in 1963, as a result of its discovery during the course of an Inspector General survey of the Technical Services Division. When the Inspector General learned of the project, he spoke to the Deputy Director for Plans, who agreed that the Director should be briefed. The DDP made it clear that the DCI and his Deputy were generally familiar with MKULTRA. He indicated, however, that he was not sure it was necessary to brief the DDCI at that point.

On May 24, 1963, the DDP advised the Inspector General that he had briefed the Director on the MKULTRA program and in particular had covered the question of the surreptitious administration of LSD to unwitting human subjects. According to the Inspector General, the DDP said that "the Director indicated no disagreement and therefore the 'testing' will continue."⁶⁶

One copy of an "Eyes Only" draft report on MKULTRA was prepared by the Inspector General who recommended the termination of the surreptitious administration project. The project was suspended following the Inspector General's report.

On December 17, 1963, Deputy Director for Plans Helms wrote a memo to the DDCI, who with the Inspector General and the Executive Director-Comptroller had opposed the covert testing. He noted two aspects of the problem: (1) "for over a decade the Clandestine Services has had the mission of maintaining a capability for influencing human behavior;" and (2) "testing arrangements in furtherance of this mission should be as operationally realistic and yet as controllable as possible." Helms argued that the individuals must be "unwitting" as this was "the only realistic method of maintaining the capability, considering the intended operational use of materials to influence human behavior as the operational targets will certainly be unwitting. Should the subjects of the testing not be unwitting, the program would only be "pro forma" resulting in a "false sense of accomplishment and readiness."⁶⁷ Helms continued:

cian need not be present. There is no danger medically in the use of this material as handled by TSS trained personnel." The Office of Medical Services had taken the position that LSD was "medically dangerous." Both the Office of Security and the Office of Medical Services argued that LSD "should not be administered unless preceded by a medical examination . . . and should be administered only by or in the presence of a physician who had studied it and its effect." (Memorandum from James Angleton, Chief, Counterintelligence Staff to Chief of Operations, 12/12/57, pp. 1-2.

⁶⁵ Physicians might be called with the hope that they would make a diagnosis of mental breakdown which would be useful in discrediting the individual who was the subject of the CIA interest.

⁶⁶ Memorandum for the Record prepared by the Inspector General, 5/15/63, p. 1.

⁶⁷ *Ibid.*, p. 2.

If one grants the validity of the mission of maintaining this unusual capability and the necessity for unwitting testing, there is only then the question of how best to do it. Obviously, the testing should be conducted in such a manner as to permit the opportunity to observe the results of the administration on the target. It also goes without saying that whatever testing arrangement we adopt must afford maximum safeguards for the protection of the Agency's role in this activity, as well as minimizing the possibility of physical or emotional damage to the individual tested.⁶⁸

In another memo to the Director of Central Intelligence in June, 1964, Helms again raised the issue of unwitting testing. At that time General Carter, then acting DCI, approved several changes in the MKULTRA program proposed by Mr. Helms as a result of negotiations between the Inspector General and the DDP. In a handwritten note, however, Director Carter added that "unwitting testing will be subject to a separate decision."⁶⁹

No specific decision was made then or soon after. The testing had been halted and, according to Walter Elder, Executive Assistant to DCI McCone, the DCI was not inclined to take the positive step of authorizing a resumption of the testing. At least through the summer, the DDP did not press the issue. On November 9, 1964, the DDP raised the issue again in a memo to the DCI, calling the Director's attention to what he described as "several other indications during the past year of an apparent Soviet aggressiveness in the field of covertly administered chemicals which are, to say the least, inexplicable and disturbing."⁷⁰

Helms noted that because of the suspension of covert testing, the Agency's "positive operational capability to use drugs is diminishing, owing to a lack of realistic testing. With increasing knowledge of the state of the art, we are less capable of staying up with Soviet advances in this field. This in turn results in a waning capability on our part to restrain others in the intelligence community (such as the Department of Defense) from pursuing operations in this area."⁷¹

Helms attributed the cessation of the unwitting testing to the high risk of embarrassment to the Agency as well as the "moral problem." He noted that no better covert situation had been devised than that which had been used, and that "we have no answer to the moral issue."⁷²

Helms asked for either resumption of the testing project or its definitive cancellation. He argued that the status quo of a research and development program without a realistic testing program was causing the Agency to live "with the illusion of a capability which is becoming minimal and furthermore is expensive."⁷³ Once again no formal action was taken in response to the Helms' request.

⁶⁸ Memorandum from DDP Helms to DDCI Carter, 12/17/63.

⁶⁹ Memorandum from DDP Helms to DCI, 6/9/64, p. 3.

⁷⁰ *Ibid.*, 11/9/64, p. 1.

⁷¹ *Ibid.*, pp. 1-2.

⁷² *Ibid.*, p. 2.

⁷³ *Ibid.*

From its beginning in the early 1950's until its termination in 1963, the program of surreptitious administration of LSD to unwitting non-volunteer human subjects demonstrates a failure of the CIA's leadership to pay adequate attention to the rights of individuals and to provide effective guidance to CIA employees. Though it was known that the testing was dangerous, the lives of subjects were placed in jeopardy and their rights were ignored during the ten years of testing which followed Dr. Olson's death. Although it was clear that the laws of the United States were being violated, the testing continued. While the individuals involved in the Olson experiment were admonished by the Director, at the same time they were also told that they were not being reprimanded and that their "bad judgment" would not be made part of their personnel records. When the covert testing project was terminated in 1963, none of the individuals involved were subject to any disciplinary action.

4. Monitoring and Control of the Testing and Use of Chemical and Biological Agents by the CIA

The Select Committee found numerous failures in the monitoring and control of the testing and use of chemical and biological agents within the CIA.⁷⁴ An analysis of the failures can be divided into four sections: (a) the waiver of normal regulations or requirements; (b) the problems in authorization procedures; (c) the failure of internal review mechanisms such as the Office of General Counsel, the Inspector General, and the Audit Staff; and (d) the effect of compartmentation and competition within the CIA.

a. The Waiver of Administrative Controls.—The internal controls within any agency rest on: (1) clear and coherent regulations; (2) clear lines of authority; and (3) clear rewards for those who conduct themselves in accord with agency regulations and understandable and immediate sanctions against those who do not. In the case of the testing and use of chemical and biological agents, normal CIA administrative controls were waived. The destruction of the documents on the largest CIA program in this area constituted a prominent example of the waiver of normal Agency procedures by the Director.

These documents were destroyed in early 1973 at the order of then DCI Richard Helms. According to Helms, Dr. Sidney Gottlieb, then Director of TSD:

... came to me and said that he was retiring and that I was retiring and he thought it would be a good idea if these files were destroyed. And I also believe part of the reason for our thinking this was advisable was there had been relationships with outsiders in government agencies and other organizations and that these would be sensitive in this kind of a thing but that since the program was over and finished and done with, we thought we would just get rid of the files as

⁷⁴ Section 2(9) of S. Res. 21 instructs the Committee to examine: the "extent to which United States intelligence agencies are governed by Executive Orders, rules, or regulations either published or secret."

well, so that anybody who assisted us in the past would not be subject to follow-up or questions, embarrassment, if you will.⁷⁵

The destruction was based on a waiver of an internal CIA regulation, CSI 70-10, which regulated the "retirement of inactive records." As Thomas Karamessines, then Deputy Director of Plans, wrote in regulation CSI-70-10: "Retirement is not a matter of convenience or of storage but of conscious judgment in the application of the rules modified by knowledge of individual component needs. The heart of this judgment is to ensure that the complete story can be reconstructed in later years and by people who may be unfamiliar with the events."⁷⁶

The destruction of the MKULTRA documents made it impossible for the Select Committee to determine the full range and extent of the largest CIA research program involving chemical and biological agents. The destruction also prevented the CIA from locating and providing medical assistance to the individuals who were subjects in the program. Finally, it prevented the Committee from determining the full extent of the operations which made use of materials developed in the MKULTRA program.⁷⁷

From the inception of MKULTRA normal Agency procedures were waived. In 1953, Mr. Helms, then Assistant Deputy Director for Plans, proposed the establishment of MKULTRA. Under the proposal six percent of the research and development budget of TSD would be expended "without the establishment of formal contractual relations" because contracts would reveal government interest. Helms also voted that qualified individuals in the field "are most reluctant to enter into signed agreements of any sort which connect them with this activity since such a connection would jeopardize their professional reputa-

⁷⁵ Richard Helms testimony, 9/11/75, p. 5.

Many Agency documents recording confidential relationships with individuals and organizations are retained without public disclosure. Moreover, in the case of MKULTRA the CIA had spent millions of dollars developing both materials and delivery systems which could be used by the Clandestine Services; the reconstruction of the research and development program would be difficult if not impossible, without the documents, and at least one assistant to Dr. Gottlieb protested against the document destruction on those grounds.

⁷⁶ Clandestine Services Institution (CSI) 70-10. When asked by the Select Committee about the regularity of the procedure by which he authorized Dr. Gottlieb to destroy the MKULTRA records, Helms responded:

"Well, that's hard to say whether it would be part of the regular procedure or not, because the record destruction program is conducted according to a certain pattern. There's a regular record destruction pattern in the Agency monitored by certain people and done a certain way. So that anything outside of that, I suppose, would have been unusual. In other words, there were documents being destroyed because somebody had raised this specific issue rather than because they were encompassed in the regular records destruction program. So I think the answer to your question is probably yes." (Helms testimony, 9/11/75, p. 6.)

⁷⁷ Even prior to the destruction of documents, the MKULTRA records were far from complete. As the Inspector General noted in 1963:

"Files are notably incomplete, poorly organized, and lacking in evaluative statements that might give perspective to management policies over time. A substantial portion of the MKULTRA record appears to rest in the memories of the principal officers and is therefore almost certain to be lost with their departures." (IG Report on MKULTRA, p. 23.)

tions".⁷⁸ Other Agency procedures, i.e., the forwarding of documents in support of invoices and the provision for regular audit procedures, were also to be waived. On April 13, 1953, then DCI Allen Dulles approved MKULTRA, noting that security considerations precluded handling the project through usual contractual agreements.

Ten years later investigations of MKULTRA by both the Inspector General and the Audit Staff noted substantial deficiencies which resulted from the waivers. Because TSD had not reserved the right to audit the books of contractors in MKULTRA, the CIA had been unable to verify the use of Agency grants by a contractor. Another firm had failed to establish controls and safeguards which would assure "proper accountability" in use of government funds with the result that "funds have been used for purposes not contemplated by grants or allowable under usual contract relationship."⁷⁹ The entire MKULTRA arrangement was condemned for having administrative lines which were unclear, overly permissive controls, and irresponsible supervision.

The head of the Audit Branch noted that inspections and audits: led us to see MKULTRA as frequently having provided a device to escape normal administrative controls for research that is not especially sensitive, as having allowed practices that produce gross administrative failures, as having permitted the establishment of special relationships with unreliable organizations on an unacceptable basis, and as having produced, on at least one occasion, a cavalier treatment of a bona fide contracting organization.

While admitting that there may be a need for special mechanisms for handling sensitive projects, the Chief of the Audit Branch wrote that "both the terms of reference and the ground rules for handling such special projects should be spelled out in advance so that diversion from normal channels does not mean abandonment of controls.

Special procedures may be necessary to ensure the security of highly sensitive operations. To prevent the erosion of normal internal control mechanisms, such waivers should not be extended to less sensitive operations. Moreover, only those regulations which would endanger security should be waived; to waive regulations generally would result in highly sensitive and controversial projects having looser rather than stricter administrative controls. MKNAOMI, the Fort Detrick CIA project for research and development of chemical and biological agents, provides another example where efforts to protect the security of agency activities overwhelmed administrative controls. No written records of the transfer of agents such as anthrax or shellfish toxin were kept, "because of the sensitivity of the area and the desire to keep any possible use of materials like this recordless."⁸¹ The

⁷⁸ Memorandum from ADDP Helms to DCI Dulles, 4/3/53, Tab. A, p. 2.

⁷⁹ Memorandum from IG to Chief, TSD, 11/8/63, as quoted in memorandum from Chief, Audit Branch.

⁸⁰ The memorandum suggested that administrative exclusions, because of the importance of such decisions, should require the personal approval of the Deputy Director of Central Intelligence on an individual case basis. Present CIA policy is that only the DCI can authorize certain exemptions from regulations.

⁸¹ Sidney Gottlieb testimony, 10/18/75, Hearings, Vol. 1, p. 61.

result was that the Agency had no way of determining what materials were on hand, and could not be certain whether delivery systems such as dart guns, or deadly substances such as cobra venom had been issued to the field.

b. Authorization.—The destruction of the documents regarding MKULTRA made it difficult to determine at what level specific projects in the program were authorized. This problem is not solely a result of the document destruction, however. Even at the height of MKULTRA the IG noted that, at least with respect to the surreptitious administration of LSD, the “present practice is to maintain no records of the planning and approval of test programs.”⁸²

While it is clear that Allen Dulles authorized MKULTRA, the record is unclear as to who authorized specific projects such as that involving the surreptitious administration of LSD to unwitting non-volunteer human subjects. Even given the sensitive and controversial nature of the project, there is no evidence that when John McCone replaced Allen Dulles as the Director of the Central Intelligence Agency he was briefed on the details of this project and asked whether it should be continued.⁸³ Even during the 1963 discussions on the propriety of unwitting testing, the DDP questioned whether it was “necessary to brief General Carter,” the Deputy Director of Central Intelligence and the Director’s “alter ego,” because CIA officers felt it necessary to keep details of the project restricted to an absolute minimum number of people.⁸⁴

In May of 1963, DDP Helms told the Inspector General that the covert testing program was authorized because he had gone to the Director, briefed him on it and “the Director indicated no disagreement and therefore the testing will continue.”⁸⁵ Such authorization even for noncontroversial matters is clearly less desirable than explicit authorization; in areas such as the surreptitious administration of drugs, it is particularly undesirable. Yet according to testimony

⁸² IG Report on MKULTRA, 1963, p. 14.

⁸³ According to an assistant to Dr. Gottlieb, there were annual briefings of the DCI and the DDP on MKULTRA by the Chief of TSD or his deputy. However, a May 15, 1963 Memorandum for the Record from the Inspector General noted that Mr. McCone had not been briefed in detail about the program. Mr. McCone’s Executive Officer, Walter Elder, testified that it was “perfectly apparent to me” that neither Mr. McCone nor General Carter, then the DDCI, was aware of the surreptitious administration project “or if they had been briefed they had not understood it.” (Elder, 12/18/75, p. 13.) Mr. McCone testified that he “did not know” whether he talked to anyone about the project but that no one had told him about it in a way that “would have turned on all the lights.” (John McCone testimony, 2/3/76, p. 10.)

⁸⁴ According to Elder’s testimony, “no Deputy Director, to my knowledge, has ever been briefed or was it ever thought necessary to brief them to the extent to which you would brief the Director.”

⁸⁵ IG Memorandum for the Record. 5/15/63.

On the question of authorization of the covert testing program, Elder testified as follows:

“But my reasonable judgment is that this was considered to be in the area of continuing approval, having once been approved by the Director.”

The theory of authorization carrying over from one administration to the next seems particularly inappropriate for less visible, highly sensitive operations which, unless brought to his attention by subordinates, would not come to the attention of the Director.

before the Committee, authorization through lack of agreement is even more prevalent in sensitive situations.⁸⁶

The unauthorized retention of shellfish toxin by Dr. Nathan Gordon and his subordinates, in violation of a Presidential Directive, may have resulted from the failure of the Director to issue written instructions to Agency officials. The retention was not authorized by senior officials in the Agency. The Director, Mr. Helms, had instructed Mr. Karamesines, the Deputy Director of Plans, and Dr. Gottlieb, the Chief of Technical Services Division, to relinquish control to the Army of any chemical or biological agents being retained for the CIA at Fort Detrick. Dr. Gottlieb passed this instruction on to Dr. Gordon. While orders may be disregarded in any organization, one of the reasons that Dr. Gordon used to defend the retention was the fact that he had not received written instructions forbidding it.⁸⁷

In some situations the existence of written instructions did not prevent unauthorized actions. According to an investigation by the CIA's Inspector General TSD officers had been *informed orally that Mr. Helms* was to be "advised at all times" when LSD was to be used. In addition TSD had received a memo advising the staff that LSD was not to be used without the permission of the DDP, Frank Wisner. The experiment involving Dr. Olson went ahead without notification of either Mr. Wisner or Mr. Helms. The absence of clear and immediate punishment for that act must undercut the force of other internal instructions and regulations.

One last issue must be raised about authorization procedures within the Agency. Chemical agents were used abroad until 1959 for discrediting or disabling operations, or for the purpose of interrogations with the approval of the Chief of Operations of the DDP. Later the approval of the Deputy Director for Plans was required for such operations. Although the medical staff sought to be part of the approval process for these operations, they were excluded because, as the Inspector General wrote in 1957:

Operational determinations are the responsibility of the DD/P and it is he who should advise the DCI in these respects, just as it is he who is responsible for the results. It is completely unrealistic to consider assigning to the Chief, Medical Staff, (what, in effect, would be authority over clandestine operations).⁸⁸

Given the expertise and training of physicians, participation of the Medical Staff might well have been useful.

Questions about authorization also exist in regard to those agencies which assisted the CIA. For instance, the project involving the surreptitious administration of LSD to unwitting non-volunteer human subjects was conducted in coordination with the Bureau of Narcotics and Dangerous Drugs. There is some question as to the Commissioner of Narcotics' knowledge about the project.

⁸⁶ Mr. Elder was asked whether the process of bringing forward a description of actions by the Agency in getting approval through the absence of disagreement was a common one. He responded, "It was not uncommon. . . . The more sensitive the project the more likely it would lean toward being a common practice, based on the need to keep the written record to a minimum."

⁸⁷ Nathan Gordon testimony, 9/16/75, Hearings, Vol. 1.

⁸⁸ 1957 IG Report.

In 1963, the Inspector General noted that the head of the BNDD had been briefed about the project, but the IG's report did not indicate the level of detail provided to him. Dr. Gottlieb testified that "I remember meeting Mr. Anslinger and had the general feeling that he was aware."⁸⁹ Another CIA officer did not recall any discussion of testing on unwitting subjects when he and Dr. Gottlieb met with Commissioner Anslinger.

In a memorandum for the record in 1967 Dr. Gottlieb stated that Harry Giordano, who replaced Mr. Anslinger, told Dr. Gottlieb that when he became Commissioner he was "only generally briefed on the arrangements, gave it his general blessing, and said he didn't want to know the details." The same memorandum states; however, that there were several comments which indicated to Dr. Gottlieb that Mr. Giordano was aware of the substance of the project. It is possible that the Commissioner provided a general authorization for the arrangement without understanding what it entailed or considering its propriety. A reluctance to seek detailed information from the CIA, and the CIA's hesitancy to volunteer it, has been found in a number of instances during the Select Committee's investigations. This problem is not confined to the executive branch but has also marked congressional relationships with the Agency.

c. Internal Review.—The waiver of regulations and the absence of documentation make it difficult to determine now who authorized which activities. More importantly, they made internal Agency review mechanisms much less effective.⁹⁰ Controversial and highly sensitive projects which should have been subject to the most rigorous inspection lacked effective internal review.

Given the role of the General Counsel and his reaction to the surreptitious administration of LSD to Dr. Olson, it would have seemed likely that he would be asked about the legality or propriety of any subsequent projects involving such administration. This was not done. He did not learn about this testing until the 1970's. Nor was the General Counsel's opinion sought on other MKULTRA projects, though these had been characterized by the Inspector General in the 1957 Report on TSD as "unethical and illicit."⁹¹

There is no mention in the report of the 1957 Inspector General's survey of TSD of the project involving the surreptitious administration of LSD. That project was apparently not brought to the attention of the survey team. The Inspector who discovered it during the IG's 1963 survey of TSD recalls coming upon evidence of it inadvertently,

⁸⁹ Gottlieb, 10/18/75, p. 28.

⁹⁰ The IG's report on MKULTRA in 1963 stated:

"The original charter documents specified that TSD maintain exacting control of MKULTRA activities. In so doing, however, TSD has pursued a philosophy of minimum documentation in keeping with the high sensitivity of some of the projects. Some files were found to present a reasonably complete record, including most sensitive matters, while others with parallel objectives contained little or no data at all. The lack of consistent records precluded use of routine inspection procedures and raised a variety of questions concerning management and fiscal controls."

⁹¹ CIA, Inspector General's report on TSD, 1957, p. 217.

rather than its having been called to his attention as an especially sensitive project.⁹²

Thus both the General Counsel and the Inspector General, the principal internal mechanisms for the control of possibly improper actions, were excluded from regular reviews of the project. When the project was discovered the Executive Director-Comptroller voiced strong opposition to it; it is possible that the project would have been terminated in 1957 if it had been called to his attention when he then served as Inspector General.

The Audit Staff, which also serves an internal review function through the examination of Agency expenditures, also encountered substantial difficulty with MKULTRA. When MKULTRA was first proposed the Audit Staff was to be excluded from any function. This was soon changed. However, the waiver of normal "contractual procedures" in MKULTRA increased the likelihood of "irregularities" as well as the difficulty in detecting them. The head of the Audit Branch characterized the MKULTRA procedures as "having allowed practices that produced gross administrative failures," including a lack of controls within outside contractors which would "assure proper accountability in use of government funds." It also diminished the CIA's capacity to verify the accountings provided by outside firms.

d. Compartmentation and Jurisdictional Conflict Within the Agency.—As has been noted, the testing and use of chemical and biological agents was treated as a highly sensitive activity within the CIA. This resulted in a high degree of compartmentation. At the same time substantial jurisdictional conflict existed within the Agency between the Technical Services Division, and the Office of Medical Services and the Office of Security.

This compartmentation and jurisdictional conflict may well have led to duplication of effort within the CIA and to Agency policy-makers being deprived of useful information.

During the early 1950's first the BLUEBIRD Committee and then the ARTICHOKE Committee were instituted to bring together representatives of the Agency components which had a legitimate interest in the area of the alteration of human behavior. By 1957 both these committees had fallen into disuse. No information went to the Technical Services Division (a component supposedly represented on the ARTICHOKE Committee) about ARTICHOKE operations being conducted by the Office of Security and the Office of Medical Services. The Technical Services Division which was providing support to the Clandestine Services in the use of chemical and biological agents, but provided little or no information to either the Office of Security or the Office of Medical Services. As one TSD officer involved in these programs testified: "Although we were acquainted, we certainly didn't share experiences."⁹³

⁹² Even after the Inspector came upon it the IG did not perform a complete investigation of it. It was discovered at the end of an extensive survey of TSD and the Inspector was in the process of being transferred to another post within the Agency.

⁹³ Testimony of CIA officer, 11/21/75, p. 14.

QKHILLTOP, another group designed to coordinate research in this area also had little success. The group met infrequently—only twice a year—and little specific information was exchanged.⁹⁴

Concern over security obviously played some role in the failure to share information,⁹⁵ but this appears not to be the only reason. A TSD officer stated that the Office of Medical Services simply wasn't "particularly interested in what we were doing" and never sought such information.⁹⁶ On the other hand, a representative of the Office of Medical Services consistently sought to have medical personnel participate in the use of chemical and biological agents suggested that TSD did not inform the Office of Medical Services in order to prevent their involvement.

Jurisdictional conflict was constant in this area. The Office of Security, which had been assigned responsibility for direction of ARTICHOKE, consistently sought to bring TSD operations involving psychochemicals under the ARTICHOKE umbrella. The Office of Medical Services sought to have OMS physicians advise and participate in the operational use of drugs. As the Inspector General described it in 1957, "the basic issue is concerned with the extent of authority that should be exercised by the Chief, Medical Staff, over the activities of TSD which encroach upon or enter into the medical field," and which are conducted by TSD "without seeking the prior approval of the Chief, Medical Staff, and often without informing him of their nature and extent."⁹⁷

As was noted previously, because the projects and programs of TSD stemmed directly from operational needs controlled by the DDP, the IG recommended no further supervision of these activities by the Medical Staff:

It is completely unrealistic to consider assigning to the Chief, Medical Staff, what, in effect, would be authority over clandestine operations. *Furthermore, some of the activities of Chemical Division are not only unorthodox but unethical and sometimes illegal. The DDP is in a better position to evaluate the justification for such operations than the Chief, Medical Staff.*⁹⁸ [Emphasis added.]

Because the advice of the Director of Security was needed for "evaluating the risks involved" in the programs and because the knowledge that the CIA was "engaging in unethical and illicit activities would have serious repercussions in political and diplomatic circles," the IG recommended that the Director of Security be fully advised of TSD's activities in these areas.

Even after the Inspector General's Report of 1957, the compartmentation and jurisdictional conflict continued. They may have had a sub-

⁹⁴ The one set of minutes from a QKHILLTOP meeting indicated that individuals in the Office of Medical Services stressed the need for more contact.

⁹⁵ When asked why information on the surreptitious administration of LSD was not presented to the ARTICHOKE committee, Dr. Gottlieb responded: "I imagine the only reason would have been a concern for broadening the awareness of its existence."

⁹⁶ CIA officer, 11/21/75, p. 14.

⁹⁷ IG Survey of TSD, 1957, p. 217.

⁹⁸ *Ibid.*

stantial negative impact on policymaking in the Agency. As the Deputy Chief of the Counterintelligence Staff noted in 1958, due to the different positions taken by TSS, the Office of Security, and the Office of Medical Services on the use of chemical or biological agents, it was possible that the individual who authorized the use of a chemical or biological agent could be presented with "incomplete facts upon which to make a decision relevant to its use." Even a committee set up by the DDP in 1958 to attempt to rationalize Agency policy did not have access to records of testing and use. This was due, in part, to excessive compartmentation, and jurisdictional conflict.

C. COVERT TESTING ON HUMAN SUBJECTS BY MILITARY INTELLIGENCE GROUPS: MATERIAL TESTING PROGRAM EA 1729, PROJECT THIRD CHANGE, AND PROJECT DERBY HAT

EA 1729 is the designator used in the Army drug testing program for lysergic acid diethylamide (LSD). Interest in LSD was originally aroused at the Army's Chemical Warfare Laboratories by open literature on the unusual effects of the compound.⁹⁹ The positive intelligence and counterintelligence potential envisioned for compounds like LSD, and suspected Soviet interest in such materials,¹⁰⁰ supported the development of an American military capability and resulted in experiments conducted jointly by the U.S. Army Intelligence Board and the Chemical Warfare Laboratories.

These experiments, designed to evaluate potential intelligence uses of LSD, were known collectively as "Material Testing Program EA 1729." Two projects of particular interest conducted as part of these experiments, "THIRD CHANCE" and "DERBY HAT", involved the administration of LSD to unwitting subjects in Europe and the Far East.

In many respects, the Army's testing programs duplicated research which had already been conducted by the CIA. They certainly involved the risks inherent in the early phases of drug testing. In the Army's tests, as with those of the CIA, individual rights were also subordinated to national security considerations; informed consent and follow-up examinations of subjects were neglected in efforts to maintain the secrecy of the tests. Finally, the command and control problems which were apparent in the CIA's programs are paralleled by a lack of clear authorization and supervision in the Army's programs.

⁹⁹ USAINTC staff study, "Material Testing Program, EA 1729," 10/15/59, p. 4.

¹⁰⁰ This same USAINTC study cited "A 1952 (several years prior to initial U.S. interest in LSD-25) report that the Soviets purchased a large quantity of LSD-25 from the Sandoz Company in 1951, reputed to be sufficient for 50 million doses." (*Ibid.*, p. 16.)

Generally accepted Soviet methods and counterintelligence concerns were also strong motivating factors in the initiation of this research:

"A primary justification for field experimentation in intelligence with EA 1729 is the counter-intelligence or defense implication. We know that the enemy philosophy condones any kind of coercion or violence for intelligence purposes. There is proof that his intelligence service has used drugs in the past. There is strong evidence of keen interest in EA 1729 by him. If for no other purpose than to know what to expect from enemy intelligence use of the material and to, thus, be prepared to counter it, field experimentation is justified." (*Ibid.*, p. 34)

1. Scope of Testing

Between 1955 and 1958 research was initiated by the Army Chemical Corps to evaluate the potential for LSD as a chemical warfare incapacitating agent. In the course of this research, LSD was administered to more than 1,000 American volunteers who then participated in a series of tests designed to ascertain the effects of the drug on their ability to function as soldiers. With the exception of one set of tests at Fort Bragg, these and subsequent laboratory experiments to evaluate chemical warfare potential were conducted at the Army Chemical Warfare Laboratories, Edgewood, Maryland.

In 1958 a new series of laboratory tests were initiated at Edgewood. These experiments were conducted as the initial phase of Material Testing Program EA 1729 to evaluate the intelligence potential of LSD, and included LSD tests on 95 volunteers.¹⁰¹ As part of these tests, three structured experiments were conducted:

1. LSD was administered surreptitiously at a simulated social reception to volunteer subjects who were unaware of the purpose or nature of the tests in which they were participating;
2. LSD was administered to volunteers who were subsequently polygraphed; and
3. LSD was administered to volunteers who were then confined to "isolation chambers".

These structured experiments were designed to evaluate the validity of the traditional security training all subjects had undergone in the face of unconventional, drug enhanced, interrogations.

At the conclusion of the laboratory test phase of Material Testing Program EA 1729 in 1960, the Army Assistant Chief of Staff for Intelligence (ACSI) authorized operational field testing of LSD. The first field tests were conducted in Europe by an Army Special Purpose Team (SPT) during the period from May to August of 1961. These tests were known as Project THIRD CHANCE and involved eleven separate interrogations of ten subjects. None of the subjects were volunteers and none were aware that they were to receive LSD. All but one subject, a U.S. soldier implicated in the theft of classified documents, were alleged to be foreign intelligence sources or agents. While interrogations of these individuals were only moderately successful, at least one subject (the U.S. soldier) exhibited symptoms of severe paranoia while under the influence of the drug.

The second series of field tests, Project DERBY HAT, were conducted by an Army SPT in the Far East during the period from August to November of 1962. Seven subjects were interrogated under DERBY HAT, all of whom were foreign nationals either suspected of dealing in narcotics or implicated in foreign intelligence operations. The purpose of this second set of experiments was to collect additional data on the utility of LSD in field interrogations, and to evaluate any different effects the drug might have on "Orientals."

¹⁰¹ Inspector General of the Army Report. "Use of Volunteers in Chemical Agent Research," 3/10/76, p. 138.

2. Inadequate Coordination Among Intelligence Agencies

On October 15, 1959, the U.S. Army Intelligence Center prepared lengthy staff study on Material Testing Program EA 1729. The stated purpose of the staff study was: "to determine the desirability of EA 1729 on non-US subjects in selected actual operations under controlled conditions."¹⁰² It was on the basis of this study that operational field tests were later conducted.

After noting that the Chemical Warfare Laboratories began experiments with LSD on humans in 1955 and had administered the drug to over 1,000 volunteers, the "background" section of the study concluded:

There has not been a single case of residual ill effect. Study of the prolific scientific literature on LSD-25 and personal communication between US Army Chemical Corps personnel and other researchers in this field have failed to disclose an authenticated instance of irreversible change being produced in normal humans by the drug.¹⁰³

This conclusion was reached despite an awareness that there were inherent medical dangers in such experimentation. In the body of this same study it is noted that:

The view has been expressed that EA 1729 is a potentially dangerous drug, whose pharmaceutical actions are not fully understood and there has been cited the possibility of the continuance of a chemically induced psychosis in chronic form, particularly if a latent schizophrenic were a subject, with consequent claim or representation against the U.S. Government.¹⁰⁴

An attempt was made to minimize potential medical hazards by careful selection of subjects prior to field tests. Rejecting evidence that the drug might be hazardous, the study continued:

The claim of possible permanent damage caused by EA 1729 is an unproven hypothesis based on the characteristic effect of the material. While the added stress of a real situation may increase the probability of permanent adverse effect, *the resulting risk is deemed to be slight by the medical research personnel of the Chemical Warfare Laboratories.* To prevent even such a slight risk, the proposed plan for field experimentation calls for overt, if possible, or contrived-through-ruse, if necessary, physical and mental examination of any real situation subject prior to employment of the subject.¹⁰⁵

This conclusion was drawn six years after one death had occurred which could be attributed, at least in part, to the effects of the very drug the Army was proposing to field test. The USAINTC staff, however, was apparently unaware of the circumstances surrounding Dr. Olson's death. This lack of knowledge is indicative of the

¹⁰² USAINTC staff study, "Material Testing Program EA 1729," 10/15/59, p. 4.

¹⁰³ *Ibid.*, p. 4.

¹⁰⁴ *Ibid.*, p. 25.

¹⁰⁵ *Ibid.*

general lack of interagency communication on drug related research. As the October 1959 study noted, "there has been no coordination with other intelligence agencies up to the present."¹⁰⁶

On December 7, 1959, the Army Assistant Chief of Staff for Intelligence (ACSI, apparently a General Willems) was briefed on the proposed operational use of LSD by USAINTC Project Officer Jacobson, in preparation for Project THIRD CHANCE. General Willems expressed concern that the project had not been coordinated with the FBI and the CIA. He is quoted as saying "that if this project is going to be worth anything it [LSD] should be used on higher types of non-U.S. subjects" in other words "staffers." He indicated this could be accomplished if the CIA were brought in. The summary of the briefing prepared by a Major Mehovsky continues: "Of particular note is that ACSI did not direct coordination with CIA and the FBI but only mentioned it for consideration by the planners."¹⁰⁷

After the briefing, four colonels, two lieutenant colonels and Major Mehovsky met to discuss interagency cooperation with CIA and FBI. The group consensus was to postpone efforts toward coordination:

Lt. Col. Jacobson commented that before we coordinate with CIA we should have more factual findings from field experimentation with counterintelligence cases that will strengthen our position and proposal for cooperation. This approach was agreed to by the conferees.¹⁰⁸

Had such coordination been achieved, the safety of these experiments might have been viewed differently and the tests themselves might have been seen as unnecessary.

3. Subordination of Individual Rights to National Security Considerations

Just as many of these experiments may have been unnecessary, the nature of the operational tests (polygraph-assisted interrogations of drugged suspects) reflects a basic disregard for the fundamental human rights of the subjects. The interrogation of an American soldier as part of the THIRD CHANCE 1961 tests is an example of this disregard.

The "trip report" for Project THIRD CHANCE, dated September 6, 1961, recounts the circumstances surrounding and the results of the tests as follows:

[The subject] was a U.S. soldier who had confessed to theft of classified documents. Conventional methods had failed to ascertain whether espionage intent was involved. A significant new admission by subject that he told a fellow soldier of the theft while he still had the documents in his possession was obtained during the EA 1729 interrogation along with other variations of Subject's previous account. The interrogation results were deemed by the local operational authority satisfactory evidence of Subject's claim of innocence in regard to espionage intent.¹⁰⁹

¹⁰⁶ *Ibid.*, p. 6.

¹⁰⁷ Mehovsky Fact Sheet, 12/9/60, p. 1.

¹⁰⁸ *Ibid.*, p. 2.

¹⁰⁹ SPT Trip Report, Operation THIRD CHANCE, 9/6/61, p. 5.

The subject apparently reacted very strongly to the drug, and the interrogation, while productive, was difficult. The trip report concluded:

(1) This case demonstrated the ability to interrogate a subject profitably throughout a highly sustained and almost incapacitating reaction to EA 1729.

(2) The apparent value of bringing a subject into the EA 1729 situation in a highly stressed state was indicated.

(3) The usefulness of employing as a duress factor the device of inviting the subject's attention to his EA 1729-influenced state and threatening to extend this state indefinitely even to a permanent condition of insanity, or to bring it to an end at the discretion of the interrogators was shown to be effective.

(4) The need for preplanned precautions against extreme paranoiac reaction to EA 1729 was indicated.

(5) It was brought to attention by this case that where subject has undergone extended intensive interrogation prior to the EA 1729 episode and has persisted in a version repeatedly during conventional interrogation, adherence to the same version while under EA 1729 influence, however extreme the reaction, may not necessarily be evidence of truth but merely the ability to adhere to a well rehearsed story.¹¹⁰

This strong reaction to the drug and the accompanying discomfort this individual suffered were exploited by the use of traditional interrogation techniques. While there is no evidence that physical violence or torture were employed in connection with this interrogation, physical and psychological techniques were used in the THIRD CHANCE experiments to exploit the subjects' altered mental state, and to maximize the stress situation. Jacobson described these methods in his trip report:

Stressing techniques employed included silent treatment before or after EA 1729 administration, sustained conventional interrogation prior to EA 1729 interrogation, deprivation of food, drink, sleep or bodily evacuation, sustained isolation prior to EA 1729 administration, hot-cold switches in approach, duress "pitches", verbal degradation and bodily discomfort, or dramatized threats to subject's life or mental health.¹¹¹

Another gross violation of an individual's fundamental rights occurred in September 1962 as part of the Army's DERBY HAT tests in the Far East. A suspected Asian espionage agent was given 6 micrograms of LSD per kilogram of bodyweight. The administration of the drug was completed at 1035 that morning:

At 1120, sweating became evident, his pulse became thready. He was placed in a supine position. He began groaning with expiration and became semicomatose.¹¹²

¹¹⁰ *Ibid.*, pp. 17-18.

¹¹¹ *Ibid.*, p. 13.

¹¹² "DERBY HAT" Medical and Pharmacological Report: Case #1, 9/20/62, p. D10-2.

For the next 28 minutes, the subject remained semicomatose.

At 1148, responses to painful stimuli were slightly improved.

At 1155, he was helped to a sitting position.

At 1200, he became shocky again and was returned to supine position.

At 1212, he was more alert and able to sit up with help.

At 1220, Subject was assisted to the interrogation table.

At 1230, he began moaning he wanted to die and usually ignored questions. Rarely he stated "he didn't know."

At 1250, his phasic alertness persisted. He frequently re-focused his eyes with eyelid assistance. He frequently threw his head back with eyes closed.

At 1330, he was slightly more alert. He was forced-walked for 5 minutes. He physically would cooperate until he became shocky again (sweating, thready pulse, pale).¹¹³

For the next three hours the subject remained in about the same condition. Continued attempts at interrogation yielded no relevant answers. Six hours after receiving the drug, the subject began giving relevant answers to questions. Eight and one-half hours after the initial dosage, the subject was polygraphed. The interrogation continued for seventeen and one-half hours after the drug was administered.

There was some psychological and medical screening of the individuals tested within the United States, in Europe, and in Asia. The proposal for the field experimentation in fact called for such examinations. The fact of prescreening did not eliminate the risk of injury; the availability of medical staff did, however, limit injury and may well have prevented the death of one or more of the subjects. As the medical corps member of the team which surreptitiously administered the LSD noted, "one subject . . . did collapse after the interrogation and the presence of the medical officer was not only of value to the subject but to the interrogation team who were thus assured that an unnecessary untoward result would not occur."¹¹⁵

In the October 15, 1959, USAINTC staff study, moral and legal ramifications of covert administration of LSD in field conditions were considered.

It was always a tenet of Army Intelligence that the basic American principle of the dignity and welfare of the individual will not be violated. . . . A more meticulous regard for the prohibition against violence or duress is taken in practice when the suspect is a US citizen or ally as against an actual or potential enemy, in peace as against war, and in respect to the nature of the crime. . . . In intelligence, the stakes involved and the interests of national security may permit a more tolerant interpretation of moral-ethical values, but not legal limits, through necessity. . . . Any claim

¹¹³ *Ibid.*, p. D10-3.

¹¹⁵ SPT Trip Report, Operation THIRD CHANCE, 7/25/61, p. 1.

against the US Government for alleged injury due to EA 1729 must be legally shown to have been due to the material. Proper security and appropriate operational techniques can protect the fact of employment of EA 1729.¹¹⁶

On the basis of this evaluation, the study concluded that in view of "the stakes involved and the interests of national security," the proposed plan for field testing should be approved.

The surreptitious administration of drugs to unwitting subjects by the Army raises serious constitutional and legal issues. The consideration given these issues by the Army was wholly insufficient. The character of the Army's volunteer testing program and the possibility that drugs were simply substituted for other forms of violence or duress in field interrogations raises serious doubts as to whether national security imperatives were properly interpreted. The "consent" forms which each American volunteer signed prior to the administration of LSD are a case in point. These forms contained no mention of the medical and psychological risks inherent in such testing, nor do they mention the nature of the psychotropic drug to be administered:

The general nature of the experiments in which I have volunteered have been explained to me from the standpoint of possible hazards to my health. *It is my understanding* that the experiments are so designed, based on the results of animals and previous human experimentation, *that the anticipated results will justify the performance of the experiment.* I understand further that experiments will be so conducted as to avoid all unnecessary physical and medical suffering and injury, and that *I will be at liberty to request that the experiments be terminated at any time* if in my opinion I have reached the physical or mental state where continuation of the experiments becomes undesirable.

I recognize that in the pursuit of certain experiments transitory discomfort may occur. I recognize, also, that under these circumstances, *I must rely upon the skill and wisdom of the physician supervising the experiment* to institute whatever medical or surgical measures are indicated. [Emphasis added.]¹¹⁸

The exclusion of any specific discussion of the nature of LSD in these forms raises serious doubts as to their validity. An "understanding . . . that the anticipated results will justify the performance of the experiment" without full knowledge of the nature of the experiment is an incomplete "understanding." Similarly, the nature of the experiment limited the ability of both the subject to request its request its termination and the experimenter to implement such a request. Finally, the euphemistic characterization of "transitory discomfort" and the agreement to "rely on the skill and wisdom of the physician" combine to conceal inherent risks in the experimentation and may be viewed as dissolving the experimenter of personal responsibility for damaging aftereffects. In summary, a "volunteer" program in which subjects are not fully informed of potential hazards to their persons is "volunteer" in name only.

¹¹⁶ USAINTC staff study, "Material Testing Program EA 1729," 10/15/59, p. 26.

¹¹⁸ Sample volunteer consent form.